

STATE OF NEW YORK

3091--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 23, 2025

Introduced by M. of A. KELLES -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law, in relation to environmental restoration projects; and to repeal certain provisions of such law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 56-0501 of the environmental conservation law is
2 amended by adding a new subdivision 3 to read as follows:

3 3. Beginning in state fiscal year two thousand twenty-five--two thou-
4 sand twenty-six, environmental restoration projects may be funded within
5 available appropriations.

6 § 2. Subdivision 1 of section 56-0502 of the environmental conserva-
7 tion law is REPEALED.

8 § 3. Subdivisions 1-a and 5 of section 56-0502 of the environmental
9 conservation law, subdivision 1-a as added and subdivision 5 as amended
10 by section 2 of part D of chapter 577 of the laws of 2004, are amended
11 and two new subdivisions 1 and 7 are added to read as follows:

12 1. "Contaminant" shall mean hazardous waste as defined in section
13 27-1301 of this chapter, petroleum as defined in section one hundred
14 seventy-two of the navigation law, the chemicals identified in paragraph
15 c of subdivision three of section eleven hundred twelve of the public
16 health law whether or not listed pursuant to the authority of the
17 department of health under such section and any other emerging contam-
18 inants as defined in section eleven hundred twelve of the public health
19 law, and any other PFAS substances for which a testing method has been
20 recommended, certified, approved or is in use by the department, the
21 department of health or the federal environmental protection agency.

22 1-a. "Contamination" or "contaminated" shall [~~have the same meaning as~~
23 ~~provided in section 27-1405 of this chapter~~] mean the presence of a

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 contaminant in any environmental media, including soil, surface water,
2 groundwater, air, or indoor air.

3 5. "Municipality", for purposes of this title, shall have the same
4 meaning as provided in subdivision fifteen of section 56-0101 of this
5 article, except that such term shall not refer to a municipality that
6 ~~[generated, transported, or disposed of, arranged for, or that caused~~
7 ~~the generation, transportation, or disposal of contamination located at~~
8 ~~real property proposed to be investigated or to be remediated under an~~
9 ~~environmental restoration project. For purposes of this title, the term~~
10 ~~municipality includes a municipality acting in partnership with a commu-~~
11 ~~nity-based organization]~~, through gross negligence or willful or inten-
12 tional misconduct, caused or contributed to contamination, which threat-
13 ens public health or the environment, at real property to be
14 investigated or remediated under an environmental restoration project.

15 7. "PFAS substances" shall mean a class of fluorinated organic chemi-
16 cals containing at least one fully fluorinated carbon atom.

17 § 4. Paragraph (c) of subdivision 2 of section 56-0503 of the environ-
18 mental conservation law, as amended by section 38 of part BB of chapter
19 56 of the laws of 2015, is amended to read as follows:

20 (c) A provision that the municipality shall assist in identifying a
21 responsible party by searching local records, including property tax
22 rolls, or document reviews, and if, in accordance with the required
23 departmental approval of any settlement with a responsible party, any
24 responsible party payments become available to the municipality, before,
25 during or after the completion of an environmental restoration project,
26 which were not included when the state share was calculated pursuant to
27 this section, ~~[the state assistance share shall be recalculated, and]~~
28 the value of such settlement shall be used by the municipality to fund
29 its municipal share, and the state assistance share shall not be recal-
30 culated, to the extent that the total of all such settlement amounts is
31 equal to or less than the municipal share. To the extent the total of
32 all such settlement amounts exceeds the municipal share, the munici-
33 pality shall pay such exceedance to the state, for deposit into the
34 environmental restoration project account of the hazardous waste remedi-
35 al fund established under section ninety-seven-b of the state finance
36 law~~[the difference between the original state assistance payment and~~
37 ~~the recalculated state share. Recalculation of the state share shall be~~
38 ~~done each time a payment from a responsible party is received by the~~
39 ~~municipality]~~;

40 § 5. Paragraphs (a), (d), and (e) of subdivision 1 of section 56-0505
41 of the environmental conservation law, as amended by section 5 of part D
42 of chapter 1 of the laws of 2003, are amended and a new paragraph (f) is
43 added to read as follows:

44 (a) the benefit to the environment and public health realized by the
45 expeditious remediation of the property proposed to be subject to such
46 project;

47 (d) real property in a designated brownfield opportunity area pursuant
48 to section nine hundred seventy-r of the general municipal law or real
49 property in a disadvantaged community pursuant to subdivision five of
50 section 75-0101 of this chapter; ~~[and]~~

51 (e) the opportunity for other funding sources to be available for the
52 investigation or remediation of such property, including, but not limit-
53 ed to, enforcement actions against responsible parties (other than the
54 municipality to which state assistance was provided under this title; or
55 a successor in title, lender, or lessee who was not otherwise a respon-
56 sible party prior to such municipality taking title to the property),

1 state assistance payments pursuant to title thirteen of article twenty-
2 seven of this chapter, and the existence of private parties willing to
3 remediate such property using private funding sources. Highest priority
4 shall be granted to projects for which other such funding sources are
5 not available[~~7~~]; and

6 (f) for drinking water contamination sites as defined in section
7 27-1201 of this chapter, any requirements made by the commissioner of
8 health pursuant to section 27-1205 of this chapter, for a municipally
9 owned public water system to take action to reduce exposure to an emerg-
10 ing contaminant or contaminants.

11 § 6. Subdivision 2 of section 56-0505 of the environmental conserva-
12 tion law is REPEALED.

13 § 7. Subdivisions 3, 4, and 5 of section 56-0505 of the environmental
14 conservation law are renumbered subdivisions 2, 3, and 4 and subdivision
15 2, as amended by section 5 of part D of chapter 1 of the laws of 2003
16 and as renumbered by this section, is amended to read as follows:

17 2. The remediation objective of an environmental restoration remedi-
18 ation project shall meet the same standard for protection of public
19 health and the environment that applies to remedial actions undertaken
20 pursuant to [section] sections 27-1313 and 27-1205 of this chapter.

21 § 8. Subdivision 3 of section 56-0509 of the environmental conserva-
22 tion law, as amended by section 4 of part D of chapter 577 of the laws
23 of 2004, is amended to read as follows:

24 3. The state shall indemnify and save harmless any municipality[~~7~~]
25 that completes an environmental restoration remediation project in
26 compliance with the terms and conditions of a state assistance contract
27 or written agreement pursuant to subdivision three of section 56-0503 of
28 this title providing such assistance and any successor in title, lessee,
29 or lender [~~identified in paragraph (a) of subdivision one of this~~
30 ~~section~~] in the amount of any judgment or settlement, obtained against
31 such municipality, successor in title, lessee, or lender in any court
32 for any common law cause of action arising out of: (a) the presence of
33 any contamination in or on property at anytime before the effective date
34 of a contract entered into pursuant to this title; or (b) municipal
35 actions related to the implementation of the environmental restoration
36 remediation project. Such municipality, successor in title, lessee, or
37 lender shall be entitled to representation by the attorney general,
38 unless the attorney general determines, or a court of competent juris-
39 diction determines, that such representation would constitute a conflict
40 of interest, in which case the attorney general shall certify to the
41 comptroller that such party is entitled to private counsel of its
42 choice, and reasonable attorneys' fees and expenses shall be reimbursed
43 by the state. Any settlement of such an action shall be subject to the
44 approval of the attorney general as to form and amount, and this subdi-
45 vision shall not apply to any settlement of any such action which has
46 not received such approval.

47 § 9. Notwithstanding subdivisions a, b, and c of section 32 of chapter
48 413 of the laws of 1996, a memorandum of understanding shall not be
49 required to make available twenty million dollars (\$20,000,000) from the
50 Clean Water/Clean Air Bond Act of 1996 for state assistance payments to
51 municipalities for environmental remediation in accordance with title 5
52 of article 56 of the environmental conservation law.

53 § 10. This act shall take effect immediately.